

Federal Constitution

NOTES

Art. 114

Clause (1)

- a. The words “three other members” substituted for the words “two other members” by Act 26/1963, subsection 10(1), in force from 16-09-1963.
- b. Subsequently the word “five” substituted for the word “three” by Act A1130, section 8, in force from 28-09-2001.
- c. The words “, a deputy chairman” were inserted by Act A514, paragraph 8(a), in force from 15-05-1981.

Clause (3)

- a. The words “Federal Court” substituted for the words “Supreme Court” by Act 26/1963, section 70, in force from 16-09-1963.
- b. Subsequently subsection 18(2) of Act A566, in force from 01-01-1985, provides that a reference to the Federal Court shall now be construed as a reference to the Supreme Court.
- c. Act A885, section 12, in force from 24-06-1994, substituted the word “Federal” for the word “Supreme”.

Clause (4)

- a. The present Clause was inserted by Act 10/1960, section 13, in force from 31-08-1957, and replaced the original Clause which read as follows:

“(4) A person is disqualified for appointment as a member of the Election Commission if he holds any other office of profit or is a member of either House of Parliament or of the Legislative Assembly of any State.”.
- b. The amendment made to Article 114 by Act 10/1960 has effect notwithstanding anything in Clause (6) of the Article—*see* subsection 21(2) of Act 14/1962.
- c. The word “shall” substituted for the word “may” by Act A514, paragraph 8(b), in force from 15-05-1981.

Clause (4)(b)

- a. Act A514, paragraph 8(c), in force from 15-05-1981, substituted the earlier paragraph which read as follows:

“(b) engages in any paid office or employment outside the duties of his office; or”

with the following:

“(b) is or becomes a member of any board of directions or board of management, or an officer or employee, or engages in the affairs or business, of any organization or body, whether corporate or otherwise, or of any commercial, industrial or other undertaking, whether or not he receives any remuneration, reward, profit or benefit from it; or”.
- b. This paragraph was again substituted by the present paragraph as it appears by virtue of Act A566, paragraph 14(1)(a), in force from 16-12-1983.

Clause (4A)

- a. The present Clause was substituted by Act A566, paragraph 14(1)(b), in force from 16-12-1983. The earlier Clause was inserted by Act A514, paragraph 8(d), in force from 15-05-1981 and read as follows:

“(4A) The disqualification in paragraph (b) of Clause (4) shall not apply where such organization or body carries out any welfare or voluntary work or objective beneficial to the community or any part thereof, or any other work or objective of a charitable or social nature, and the member does not receive any remuneration, reward, profit or benefit from it.”.
- b. *See* Election Commission Act 1957 [Act 31].

may by law provide for the terms of office of members of the Election Commission other than their remuneration.

(6) The remuneration and other terms of office of a member of the Election Commission shall not be altered to his disadvantage after his appointment.

(7) Where, during any period, the chairman of the Election Commission has been granted leave of absence by the Yang di-Pertuan Agong or is unable, owing to his absence from the Federation, illness or any other cause, to discharge his functions, the deputy chairman shall discharge the functions of the chairman during that period, and if the deputy chairman is also absent or unable to discharge such functions, a member of the Election Commission may be appointed by the Yang di-Pertuan Agong to discharge the functions of the chairman during that period.

Assistance to Election Commission

115. (1) The Election Commission may employ such number of persons, on such terms and subject to such conditions, as the Commission may with the approval of the Yang di-Pertuan Agong determine.

(2) All public authorities shall on the request of the Commission give the Commission such assistance in the discharge of its duties as may be practicable; and in exercising its functions of making recommendations for the delimitation of constituencies for the elections mentioned in Clause (1) of Article 113 the Commission shall seek the advice of two officers of the Federal Government with special knowledge of the topography of, and the distribution of the population in, the unit of review for federal elections, and those officers shall be selected for that purpose by the Yang di-Pertuan Agong.

Federal constituencies

116. (1) For the election of members to the House of Representatives a unit of review shall be divided into constituencies in accordance with the provisions contained in the Thirteenth Schedule.

(2) The total number of constituencies shall be equal to the number of members, so that one member shall be elected for

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Art. 114—(cont.)

Clause (5): See Election Commission Act 1957 [Act 31].

Clause (5A)

- a. Added by Act 14/1962, subsection 21(1), in force from 21-06-1962.
- b. *See Election Commission Act 1957 [Act 31].*

Clause (7)

- a. Added by Act A354, section 25, in force from 27-08-1976.
- b. The words “the deputy chairman shall discharge the functions of the chairman during that period, and if the deputy chairman is also absent or unable to discharge such functions,” were inserted by Act A514, paragraph 8(e), in force from 15-05-1981.

Note:

The amendments made to Article 114 by Act A566 shall apply only to a person who is appointed a member of the Election Commission on or after 16-12-1983.

Art. 115

Clause (2)

- a. The words “making recommendations for the delimitation of constituencies” substituted for the words “delimiting constituencies” by Act 14/1962, section 32, in force from 21-06-1962.
- b. The words “unit of review for federal elections, and those officers” substituted for the words “Federation, who” by Act 26/1963, section 70, in force from 16-09-1963.

Art. 116

See Eighth Schedule subsection 4(2) & Thirteenth Schedule, section 2.

Clause (1)

- a. The words “provisions contained in the Thirteenth Schedule” substituted for the words “following provisions of this Article” by Act 14/1962, paragraph 22(a), in force from 21-06-1962.
- b. The words “a unit of review” substituted for the words “the Federation” by Act 26/1963, section 70, in force 16-09-1963.

each constituency, and of that total in the States of Malaya a number determined in accordance with the provisions contained in Article 46 and the Thirteenth Schedule shall be allocated to each State.

(3) (*Repealed*).

(4) (*Repealed*).

(5) (*Repealed*).

State constituencies

117. For the election of members to the Legislative Assembly of a State the State shall be divided into as many constituencies as there are elected members, so that one member shall be elected for each constituency; and the division shall be made in accordance with the provisions contained in the Thirteenth Schedule.

Method of challenging election

118. No election to the House of Representatives or to the Legislative Assembly of a State shall be called in question except by an election petition presented to the High Court having jurisdiction where the election was held.

Method of questioning election petition of no return

118A. A petition complaining of no return to the House of Representatives or the Legislative Assembly shall be deemed to be an election petition and the High Court may make such order thereon as it may think fit for compelling a return to be made, but the failure to make a return within any period specified by Article 54 or 55 or by the corresponding provision of the Constitution of any State, as the case may be, shall not be a ground for declaring that a member has not been duly elected.

Qualifications of electors

119. (1) Every citizen who—

(a) has attained the age of *eighteen years on the qualifying date;

*NOTE—The words “eighteen years” substituted for the words “twenty-one years” are not yet in force—see paragraph 3(a) of the Constitution (Amendment) Act 2019 [Act A1603].

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Art. 116—(cont.)

Clause (2)

- a. The words “the provisions contained in the Thirteenth Schedule” substituted for the words “Clause (3)” by Act 14/1962, paragraph 22(b), in force from 21-06-1962.
- b. The words “in the States of Malaya” were inserted by Act 26/1963, section 70, in force from 16-09-1963.
- c. The words “Article 46 and the Thirteenth Schedule” substituted for the words “the Thirteenth Schedule” by Act A206, section 14, in force from 23-08-1973.

Clauses (3), (4) & (5)

These Clauses were repealed by Act 14/1962, paragraph 22(c), in force from 21-06-1962 and read as follows:

“(3) Constituencies shall be allocated to the several States in such manner that the electoral quota of each State is as nearly equal to the electoral quota of the Federation as it can be without causing undue disparity between the population quota of that State and the population quota of the Federation.

(4) Each State shall be divided into constituencies in such manner that each constituency contains a number of electors as nearly equal to the electoral quota of the State as may be after making due allowance for the distribution of the different communities and for differences in density of population and the means of communication; but the allowance so made shall not increase or reduce the number of electors in any constituency to a number differing from the electoral quota by more than fifteen per cent.

(5) In this Article—

- (a) “electoral quota” means the number obtained by dividing the number of electors in the Federation or a State by the total number of constituencies or, as the case may be, the number of constituencies in that State;
- (b) “population quota” means the number obtained by dividing the population of the Federation or of a State by the total number of constituencies or, as the case may be, the number of constituencies in that State;

and for the purposes of this Article the number of electors shall be taken to be as shown on the current electoral rolls and the population as counted at the most recent census.”.

Art. 117

1. The words “in accordance with the provisions contained in the Thirteenth Schedule” substituted for the words “in the manner provided by Clause (4) of Article 116” by Act 14/1962, section 32, in force from 21-06-1962.

2. *See* Thirteenth Schedule, section 2.

Art. 118

1. The words “the House of Representatives” substituted for the words “either House of Parliament” by Act 25/1963, subsection 3(2), in force from 29-08-1963.

2. The words “the High Court having jurisdiction where the election was held” substituted for the words “a judge of the Supreme Court” by Act 26/1963, section 70, in force from 16-09-1963.

3. *See* Art. 120(c).

Art. 118A

1. Added by Act 31/1965, subsection 2(2), in force from 01-07-1965.

2. *See* Art. 120(c).

- (b) is resident in a constituency on such qualifying date or, if not so resident, is an absent voter; and
- (c) is, under the provisions of any law relating to elections, registered in the electoral roll as an elector in the constituency in which he resides on the qualifying date,

is entitled to vote in that constituency in any election to the House of Representatives or the Legislative Assembly unless he is disqualified under Clause (3) or under any law relating to offences committed in connection with elections; but no person shall in the same election vote in more than one constituency.

(2) If a person is in a constituency by reason only of being a patient in an establishment maintained wholly or mainly for the reception and treatment of persons suffering from mental illness or mental defectiveness or of being detained in custody he shall for the purposes of Clause (1) be deemed not to be resident in that constituency.

(3) A person is disqualified for being an elector in any election to the House of Representatives or the Legislative Assembly if—

- (a) on the qualifying date he is detained as a person of unsound mind or is serving a sentence of imprisonment; or
- (b) having before the qualifying date been convicted in any part of the Commonwealth of an offence and sentenced to death or imprisonment for a term exceeding twelve months, he remains liable on the qualifying date to suffer any punishment for that offence.

(4) In this Article—

- (a) “absent voter” means, in relation to any constituency, any citizen who is registered as an absent voter in respect of that constituency;
- (b) “qualifying date” means the date on which a person *is registered as an elector in a constituency, or the date on which he applies for the change of his registration as an elector in a different constituency,

in accordance with the provisions of any law relating to elections.

*NOTE—The words “is registered” substituted for the words “applies for registration” are not yet in force—see paragraph 3(b) of the Constitution (Amendment) Act 2019 [Act A1603].

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Art. 118A—(cont.)

3. The words “or the Legislative Assembly” were inserted by Act A704, paragraph 7(a), in force from 10-06-1988.

4. The words “or by the corresponding provision of the Constitution of any State, as the case may be,” were inserted by Act A704, paragraph 7(b), in force from 10-06-1988.

Art. 119

Clause (1)

a. This Clause was substituted by Act 10/1960, paragraph 14(a), in force from 31-05-1960, and replaced the original Clause which read as follows:

“(1) Every citizen who has attained the age of twenty-one years on the qualifying date and has been resident in a constituency for at least six months immediately preceding the qualifying date is entitled to vote in that constituency in any election to the House of Representatives or the Legislative Assembly unless he is disqualified under Clause (3) or under any law relating to offences committed in connection with elections, but no person shall in the same election vote in more than one constituency.”.

b. This Clause was amended by Act A1130, section 9, in force from 28-09-2001, as follows:

- i. in paragraph (a), the word “and” at the end of paragraph was deleted;
- ii. in paragraph (b), by substituting for the comma at the end of paragraph the word “; and”; and
- iii. a new paragraph (c) was inserted as follows:

“(c) is, under the provisions of any law relating to elections, registered in the electoral roll as an elector in the constituency in which he resides on the qualifying date,”.

c. *See* Art. 120(c).

Clause (1)(a)

The words “eighteen years” substituted for the words “twenty-one years” by Act A1603, paragraph 3(a), not yet in force.

Clause (4)

a. The words ‘and “absent voter” means in relation to any constituency any citizen who is registered as an absent voter in respect of that constituency under the provisions of any law relating to elections’ were added by Act 10/1960, paragraph 14(b), in force from 31-05-1960.

b. Subsequently this Clause was substituted by Act A1130, paragraph 9(b), in force from 28-09-2001. The earlier Clause read as follows:

“(4) In this Article “qualifying date” means the date by reference to which the electoral rolls are prepared or revised, and “absent voter” means in relation to any constituency any citizen who is registered as an absent voter in respect of that constituency under the provisions of any law relating to elections.”.

Clause (4)(b)

The words “is registered” substituted for the words “applies for registration” by Act A1603, paragraph 3(b), not yet in force.

Direct elections to the Senate

120. Where in accordance with Clause (4) of Article 45 provision is made by Parliament for the election of Senators by the direct vote of electors—

- (a) the whole of a State shall form a single constituency and each elector shall have as many votes at any election to the Senate as there are seats to be filled in that election; and
- (b) the electoral rolls for elections to the House of Representatives shall also be the electoral rolls for elections to the Senate; and
- (c) Articles 118, 118A and 119 shall apply in relation to elections to the Senate as they apply in relation to elections to the House of Representatives.

PART IX**THE JUDICIARY****Judicial power of the Federation**

121. (1) There shall be two High Courts of co-ordinate jurisdiction and status, namely—

- (a) one in the States of Malaya, which shall be known as the High Court in Malaya and shall have its principal registry at such place in the States of Malaya as the Yang di-Pertuan Agong may determine; and
- (b) one in the States of Sabah and Sarawak, which shall be known as the High Court in Sabah and Sarawak and shall have its principal registry at such place in the States of Sabah and Sarawak as the Yang di-Pertuan Agong may determine;
- (c) (*Repealed*),

and such inferior courts as may be provided by federal law; and the High Courts and inferior courts shall have such jurisdiction and powers as may be conferred by or under federal law.

(1A) The courts referred to in Clause (1) shall have no jurisdiction in respect of any matter within the jurisdiction of the Syariah courts.

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Art. 120(c)

The words “Articles 118, 118A and 119” substituted for the words “Articles 118 and 119” by Act 31/1965, subsection 2(2), in force from 01-07-1965.

Art. 121

The present Article was inserted by Act 26/1963, section 13, in force from 16-09-1963 and replaced the original Article which read as follow:

“121. The judicial power of the Federation shall be vested in a Supreme Court and such inferior courts as may be provided by federal law.”.

Clause (1)

- a. Act 59/1966, section 2, in force from 09-08-1965, substituted the words “two High Courts” for the words “three High Courts” and repealed paragraph (c) of Clause (1) which read as follows:

“(c) one in the State of Singapore, which shall be known as the High Court in Singapore;”.

- b. The words “There shall be” substituted for the words “Subject to Clause (2) the judicial power of the Federation shall be vested in” by Act A704, paragraph 8(a), in force from 10-06-1988.
- c. The words “and such inferior courts as may be provided by federal law; and the High Courts and inferior courts shall have such jurisdiction and powers as may be conferred by or under federal law” substituted for the words “and in such inferior courts as may be provided by federal law” by Act A704, paragraph 8(b), in force from 10-06-1988.
- d. The words “Sabah and Sarawak” substituted for the word “Borneo” by Act A885, paragraph 13(a), in force from 24-06-1994.

Clause (1)(a)

The words “at such place in the States of Malaya as the Yang di-Pertuan Agong may determine” substituted for the words “in Kuala Lumpur” by Act A1260, paragraph 3(a), in force from 19-01-2006.

Clause (1)(b)

The words “the States of Sabah and Sarawak” substituted for the words “the Borneo States” by Act A354, section 43, in force from 27-08-1976.

Clause (1A): Added by Act A704, paragraph 8(c), in force from 10-06-1988.

Clause (1B)

- a. Added by Act A885, paragraph 13(b), in force from 24-06-1994.
- b. The words “at such place as the Yang di-Pertuan Agong may determine” substituted for the words “in Kuala Lumpur” by Act A1260, paragraph 3(b), in force from 10-10-2003.

Clause (2)

- a. The words “Mahkamah Agung (Supreme Court)” substituted for the words “Federal Court” by Act A566, paragraph 15(a), in force from 01-01-1985.
- b. Paragraph (c) was inserted by Act A566, paragraph 15(b), in force from 01-01-1985.
- c. The words “There shall be” substituted for the words “The following jurisdiction shall be vested in” by Act A704, paragraph 8(d), in force from 10-06-1988.
- d. The words “and the Supreme Court shall have the following jurisdiction” were inserted immediately after the words “Kuala Lumpur” by Act A704, paragraph 8(e), in force from 10-06-1988.
- e. The words “at such place as the Yang di-Pertuan Agong may determine” substituted for the words “in Kuala Lumpur” by Act A1260, paragraph 3(b), in force from 10-10-2003.

(1B) There shall be a court which shall be known as the Mahkamah Rayuan (Court of Appeal) and shall have its principal registry at such place as the Yang di-Pertuan Agong may determine, and the Court of Appeal shall have the following jurisdiction, that is to say:

- (a) jurisdiction to determine appeals from decisions of a High Court or a judge thereof (except decisions of a High Court given by a registrar or other officer of the Court and appealable under federal law to a judge of the Court); and
- (b) such other jurisdiction as may be conferred by or under federal law.

(2) There shall be a court which shall be known as the Mahkamah Persekutuan (Federal Court) and shall have its principal registry at such place as the Yang di-Pertuan Agong may determine, and the Federal Court shall have the following jurisdiction, that is to say:

- (a) jurisdiction to determine appeals from decisions of the Court of Appeal, of the High Court or a judge thereof;
- (b) such original or consultative jurisdiction as is specified in Articles 128 and 130; and
- (c) such other jurisdiction as may be conferred by or under federal law.

(3) Subject to any limitations imposed by or under federal law, any order, decree, judgment or process of the courts referred to in Clause (1) or of any judge thereof shall (so far as its nature permits) have full force and effect according to its tenor throughout the Federation, and may be executed or enforced in any part of the Federation accordingly; and federal law may provide for courts in one part of the Federation or their officers to act in aid of courts in another part.

(4) In determining where the principal registry of the High Court in Sabah and Sarawak is to be, the Yang di-Pertuan Agong shall act on the advice of the Prime Minister, who shall consult the Chief Ministers of the States of Sabah and Sarawak and the Chief Judge of the High Court.